

2	Bank of America N.A. vs. Leitner 2024-01408601	Motion to Set Aside/Vacate Dismissal and Enter Judgment Plaintiff Bank of America, NA moves to Set Aside Dismissal and Enter Judgment Pursuant to the Settlement Agreement. There is no dismissal to set aside. Thus, Plaintiff's request to set aside dismissal is DENIED. Because there was no dismissal, the Court retained jurisdiction. The parties entered into a settlement on August 5, 2024. (RJN Ex. B.) Defendant agreed to make payments of approximately \$1,500 every month. . (RJN Ex. B, ¶ 4.) Plaintiff ceased making monthly payments in August 2025 and has failed to repay the remaining \$21,372.07 due under the settlement agreement. (Sherrill Decl., ¶¶ 4, 7.) Tentative Ruling: Plaintiff's request to enter judgment pursuant to the terms of the Settlement Agreement is GRANTED. Plaintiff to give notice
3	Bear Capital Partners, Inc. vs. Smith 2025-01508678	1. Demurrer to Cross-Complaint 2. Case Management Conference Cross-Complainants attempted to file an amended cross-complaint on May 18, 2026, which was rejected for an error in the caption. The Court finds a short continuance to allow Cross-Complainants to file the amended cross-complaint would serve the interests of justice and conserve judicial resources by potentially eliminating many of the numerous grounds for demurrer asserted. Tentative Ruling: Plaintiffs/Cross-Defendants Bear Capital Partners, Inc. and Ronald L. Meer's Demurrer is CONTINUED to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-Complainants may file an amended cross-complaint no later than nine (9) court days prior to the continued hearing date. No further opposition is permitted. Case Management Conference is continued to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-complainants to give notice.

4	Camargo vs. Advanced Auto Refinishing Inc. 2026-01538636	Demurrer to Complaint <i>First Amended Complaint filed 5/6/2026</i> Off Calendar
5	Chung vs. Le 2025-01483307	Motion for Leave to Amend Code of Civil Procedure section 473(a)(1) states, “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Sullivan v. City of Sacramento (1987) 190 Cal.App.3d 1070, 1081.) Here, Defendants seek leave to amend their answer to allege new defenses related to their assertion that the parties reached an enforceable settlement, but Plaintiff sought to impose new material terms and refused to proceed with the settlement. The motion is unopposed. There is a strong policy favoring amendment. Tentative Ruling: The Motion for Leave to Amend Answer by Defendants Trinh Le and Dao Le is GRANTED. Defendants shall file and serve their amended answer within ten days.